

Number 27 *of* 1988

BANKRUPTCY ACT 1988

REVISED

Updated to 1 October 2018

This Revised Act is an administrative consolidation of the *Bankruptcy Act 1988*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Mental Health (Renewal Orders) Act 2018* (23/2018), enacted 3 October 2018, and all statutory instruments up to and including *Civil Liability (Amendment) Act 2017 (Parts 1, 2 and 3) (Commencement) Order 2018* (S.I. No. 377 of 2018), made 25 September 2018, were considered in the preparation of this Revised Act.

Disclaimer: While every care has been taken in the preparation of this Revised Act, the Law Reform Commission can assume no responsibility for and give no guarantees, undertakings or warranties concerning the accuracy, completeness or up to date nature of the information provided and does not accept any liability whatsoever arising from any errors or omissions. Please notify any errors, omissions and comments by email to revisedacts@lawreform.ie.



Number 27 *of* 1988

BANKRUPTCY ACT 1988

REVISED

Updated to 1 October 2018

AN ACT TO CONSOLIDATE WITH AMENDMENTS THE LAW RELATING TO BANKRUPTCY AND TO PROVIDE FOR RELATED MATTERS. [13*th July*, 1988]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

PART I

Preliminary and General

Short title.

1.—This Act may be cited as the Bankruptcy Act, 1988.

Commencement.

2.—This Act shall come into operation on such day not later than 1 January, 1989 as the Minister by order appoints.

Interpretation.

3.—In this Act, unless the context otherwise requires,—

F1**[**'Act of 2010' means the Civil Partnership and Certain Rights and Obligations of Cohabitants Act 2010;**]**

"adjudication" means adjudication in bankruptcy;

"after-acquired property" has the meaning assigned to it by *section 44 (5)*;

"arrangement" means an arrangement in pursuance of an order for protection under *Part IV*;

"arranging debtor" means a debtor who has been granted an order for protection under *Part IV*;

"assignees" means the Official Assignee and the creditors' assignee, if any;

F2**[** 'Bankruptcy Inspector' means a person standing appointed for the time being—

(i) to the position of Bankruptcy Inspector in the Office of the Official Assignee in Bankruptcy on the day before the coming into operation of section 29 of the Courts and Civil Law (Miscellaneous Provisions) Act 2013, or

(d) in relation to proceedings so opened under Article 3(2) of the Regulation, does not include property so situated;**]**

"registered", in relation to land, means registered in the Registry of Deeds or the Land Registry, as may be appropriate;

"secured creditor" means any creditor holding any mortgage, charge or lien on the debtor's estate or any part thereof as security for a debt due to him;

F3**[** 'statement of affairs' means a statement of the debtor's or bankrupt's affairs in the form specified in rules of court;**]**

F3**[** 'trustee' means a person appointed as trustee under Part V;**]**

"vesting arrangement" has the meaning assigned to it by *section 93 (2)*.

F8**[**(2) *Parts II*, *III*, *IV* (in so far as it relates to vesting arrangements), *V*, *VI* and *VIII* and the *First Schedule* are subject to Chapters I (general provisions) and III (secondary insolvency proceedings) of the Insolvency Regulation.**]**

Application of Act to subsisting bankruptcies and arrangements.

4.—(1) Save where otherwise provided in this Act, a bankruptcy or arrangement subsisting at the commencement of this Act shall thereafter be administered according to the provisions of this Act and the rules thereunder, without prejudice to the validity of anything duly done or suffered before such commencement.

(2) The provisions of this Act and the rules shall apply accordingly, so far as they are capable of application and subject to such modifications and adaptations as may be appropriate, as if the bankrupt had been adjudicated or the arranging debtor had been granted an order for protection under this Act.

Expenses.

5.—The expenses incurred by the Minister in the administration of this Act shall, to such extent as may be sanctioned by the Minister for Finance, be paid out of moneys provided by the Oireachtas.

Repeals.

6.—(1) The enactments mentioned in the *Second Schedule* are hereby repealed to the extent mentioned in the *third column* of that Schedule.

(2) Any petition, summons, *subpoena*, order, direction, notice or other instrument presented, served, made or issued under a repealed enactment and in force at the commencement of this Act shall continue in force and be treated thereafter as if it had been presented, served, made or issued under this Act.

PART II

PROCEDURE IN BANKRUPTCY

Acts of bankruptcy.

(1872, s. 21 in pt.)

7.—(1) An individual (in this Act called a "debtor") commits an act of bankruptcy in each of the following cases—

(*a*) if in the State or elsewhere he makes a conveyance or assignment of all or substantially all of his property to a trustee or trustees for the benefit of his creditors generally;

(*b*) if in the State or elsewhere he makes a fraudulent conveyance, gift, delivery or transfer of his property or any part thereof;

(*c*) if in the State or elsewhere he makes any conveyance or transfer of his property or any part thereof, or creates any charge thereon, which would under this